

and has reconsidered these cases.

McDonough and *Finnie* involved reversals of dismissals based upon rulings from demurrer and *Nunn* involved a reversal from an order granting summary judgment. None of Plaintiff's cited cases hold that the reversal of an order granting a motion to dismiss for failure to prosecute constitutes a "new trial" under section 583.310-583.360. Further, even assuming that *Finnie*'s attempt to limit *Fannin* so *Fannin* only applies in cases where there was not an unqualified reversal (*Finnie, supra*, 8 Cal.App.4th at 1319 fn. 5) that still does not explain the holding *Greene* or the dicta in *Wilshire*.

Plaintiff argues that the meaning of "trial" should be consistent when used in section 583, et seq and sections 656, et seq. While there is some logic to that argument, the cases cited by Plaintiff, including *McDonough* and *Finnie*, show that Courts do not use the definition of trial interchangeably between the two sections. Rather, the courts provide separate analysis for what is a trial in a motion for a new trial and what constitutes a trial in a motion under 583, et seq. (See *McDonough, supra*, 8 Cal.3d at 531 [section 656 does not provide an exclusive definition of trial or new trial, nor does it establish an identity of meaning between the term trial as used in section 656 and as used in section 583]; see also, *Finnie, supra*, 9 Cal.App.4th at 1317.)

The Court is not convinced that its prior order granting the motion to dismiss was made in error and therefore denies this motion.

14. 9:00 AM CASE NUMBER: MSC19-02640

CASE NAME: ALAMMARI VS OCEAN CITIES PIZZA, INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM (CONTINUED FROM 12.11.2025)**

FILED BY:

TENTATIVE RULING:

The Settlement Administrator's supplemental declaration (filed January 12, 2026), shows that the settlement terms have been implemented. The Administrator is authorized to convey \$342,817.99 in unclaimed funds to the State Bar's Justice Gap Fund as the designated cy pres beneficiary. Counsel are directed to prepare an amended judgment so reflecting, pursuant to the terms of Code of Civil Procedure section 384.5. Once the Amended Judgment is filed with the court, the Settlement Administrator is directed to disburse the remaining 5% of attorney's fees (\$51,356) to plaintiff's counsel. No further proceedings are contemplated.

15. 9:00 AM CASE NUMBER: MSC20-01334

CASE NAME: DASIA SEABROOKS VS CAR DEALER PROMOTIONS

***HEARING ON MOTION IN RE: FINAL COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

The Settlement Administrator's declaration shows that the settlement terms have been implemented. The Administrator is authorized to convey \$42,346.45 in unclaimed funds to Legal Aid at Work of San Francisco, the designated cy pres beneficiary. Counsel are directed to prepare an